

HOUSE BILL No. 1094

DIGEST OF INTRODUCED BILL

Citations Affected: IC 34-26-5.5.

Synopsis: Uniform recognition of Canadian protection orders. Codifies the Uniform Recognition and Enforcement of Canadian Domestic Violence Protection Orders Act. Provides procedures for enforcement of a Canadian domestic violence protection order (protection order) by a law enforcement officer and the court. Provides that a protection order may be registered in Indiana.

Effective: July 1, 2026.

DeLaney

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1094

A BILL FOR AN ACT to amend the Indiana Code concerning civil procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 34-26-5.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 5.5. Uniform Recognition and Enforcement of**
5 **Canadian Domestic Violence Protection Orders Act**

6 **Sec. 1. As used in this chapter, "Canadian domestic violence**
7 **protection order" means a judgment or part of a judgment or**
8 **order issued in a civil proceeding by a court of Canada under law**
9 **of the issuing jurisdiction which relates to domestic violence and**
10 **prohibits a respondent from:**

- 11 (1) **being in physical proximity to a protected individual;**
12 (2) **following a protected individual;**
13 (3) **directly or indirectly contacting or communicating with a**
14 **protected individual or other individuals described in the**
15 **order;**
16 (4) **being within a certain distance of a specified place or**
17 **location associated with a protected individual; or**



(5) molesting, annoying, harassing, or engaging in threatening conduct directed at a protected individual.

Sec. 2. As used in this chapter, "issuing court" means the court that issues a Canadian domestic violence protection order.

Sec. 3. As used in this chapter, "law enforcement officer" has the meaning set forth in IC 35-31.5-2-185.

Sec. 4. As used in this chapter, "protected individual" means an individual protected by a Canadian domestic violence protection order.

Sec. 5. As used in this chapter, "protection order" or "order for protection" means an injunction or other order issued by a court to prevent an individual from:

- (1) engaging in violent or threatening acts against;
- (2) engaging in harassment of;
- (3) engaging in direct or indirect contact or communication with; or
- (4) being in physical proximity to;

another person.

Sec. 6. As used in this chapter, "record" means information that is inscribed on a tangible medium or that is stored in an electronic or other medium and is retrievable in perceivable form.

Sec. 7. As used in this chapter, "respondent" means an individual against whom a Canadian domestic violence protection order is issued.

Sec. 8. As used in this chapter, "state" means any of the following:

- (1) A state of the United States.
- (2) The District of Columbia.
- (3) Puerto Rico.
- (4) The United States Virgin Islands.
- (5) A federally recognized Indian tribe.
- (6) Any territory or insular possession subject to the jurisdiction of the United States.

Sec. 9. This chapter applies to a Canadian domestic violence protection order issued before, on, or after July 1, 2026, and to a continuing action for enforcement of a Canadian domestic violence protection order commenced before, on, or after July 1, 2026. A request for enforcement of a Canadian domestic violence protection order made on or after July 1, 2026, for a violation of the order occurring before, on, or after July 1, 2026, is governed by this chapter.

Sec. 10. (a) If a law enforcement officer determines under



1 subsection (b) or (c) that there is probable cause to believe a valid
 2 Canadian domestic violence protection order exists and the order
 3 has been violated, the officer shall enforce the terms of the
 4 Canadian domestic violence protection order as if it were a
 5 protection order issued by Indiana. Presentation to a law
 6 enforcement officer of a certified copy of a Canadian domestic
 7 violence protection order is not required for enforcement.

8 (b) Presentation to a law enforcement officer of a record of a
 9 Canadian domestic violence protection order that identifies both
 10 a protected individual and a respondent, and on its face is in effect,
 11 constitutes probable cause to believe that a valid order exists.

12 (c) If a record of a Canadian domestic violence protection order
 13 is not presented as provided in subsection (b), a law enforcement
 14 officer may consider other information in determining whether
 15 there is probable cause to believe that a valid Canadian domestic
 16 violence protection order exists.

17 (d) If a law enforcement officer determines that an otherwise
 18 valid Canadian domestic violence protection order cannot be
 19 enforced because the respondent has not been notified of or served
 20 with the order, the officer shall notify the protected individual that
 21 the officer will make reasonable efforts to contact the respondent,
 22 consistent with the safety of the protected individual. After notice
 23 to the protected individual and consistent with the safety of the
 24 individual, the officer shall make a reasonable effort to inform the
 25 respondent of the order, notify the respondent of the terms of the
 26 order, provide a record of the order, if available, to the respondent,
 27 and allow the respondent a reasonable opportunity to comply with
 28 the order before the officer enforces the order.

29 (e) If a law enforcement officer determines that an individual is
 30 a protected individual, the officer shall inform the individual of
 31 available local victim services.

32 Sec. 11. (a) A court may issue an order enforcing or refusing to
 33 enforce a Canadian domestic violence protection order on
 34 application of:

35 (1) a person authorized by law to seek enforcement of an
 36 order for protection; or

37 (2) a respondent.

38 (b) In a proceeding under subsection (a), the court shall follow
 39 the procedures in IC 34-26-5 for enforcement of an order for
 40 protection. An order entered under this section is limited to the
 41 enforcement of the terms of the Canadian domestic violence
 42 protection order.



(c) A Canadian domestic violence protection order is enforceable under this section if:

(1) the order identifies a protected individual and a respondent;

(2) the order is valid and in effect;

(3) the issuing court had jurisdiction over the parties and the subject matter under law applicable in the issuing court; and

(4) the order was issued after:

(A) the respondent was given reasonable notice and had an opportunity to be heard before the court issued the order;

or

(B) in the case of an ex parte order, the respondent was given reasonable notice and had or will have an opportunity to be heard within a reasonable time after the order was issued, in a manner consistent with the right of the respondent to due process.

(d) A Canadian domestic violence protection order valid on its face is prima facie evidence of its enforceability under this section.

(e) A claim that a Canadian domestic violence protection order does not comply with subsection (c) is an affirmative defense in a proceeding seeking enforcement of the order. If the court determines that the order is not enforceable, the court shall issue an order that the Canadian domestic violence protection order is not enforceable under this section and section 10 of this chapter and may not be registered under section 12 of this chapter.

Sec. 12. (a) Registration or filing of a Canadian domestic violence protection order is not required for its enforcement in Indiana, and a protection order that is consistent with this chapter shall be accorded full faith and credit notwithstanding a failure to register or file the order in Indiana.

(b) If an individual wishes to register a Canadian domestic violence protection order in Indiana, all Indiana courts of record shall accommodate the request. The office of judicial administration shall develop a form to be used by courts, clerks, and law enforcement agencies when an individual makes a request to register a Canadian domestic violence protection order. Except for a protective order issued to the Indiana protective order registry established by IC 5-2-9-5.5, the courts, clerks of the courts, and sheriffs or law enforcement agencies maintaining depositories shall employ the same procedures required under IC 5-2-9-6 for entering, modifying, extending, or terminating a Canadian domestic violence protection order as those used for a protection



1 order and a no contact order originating in Indiana.

2 **Sec. 13.** A state agency, local governmental agency, law
3 enforcement officer, prosecuting attorney, clerk of court, and state
4 or local governmental official acting in an official capacity are
5 immune from civil and criminal liability for an act or omission
6 arising out of the registration or enforcement of a Canadian
7 domestic violence protection order or the detention or arrest of an
8 alleged violator of a Canadian domestic violence protection order
9 if the act or omission was a good faith effort to comply with this
10 chapter.

11 **Sec. 14.** An individual who seeks a remedy under this chapter
12 may seek other legal or equitable remedies.

13 **Sec. 15.** In applying and construing this uniform act,
14 consideration must be given to the need to promote uniformity of
15 the law with respect to its subject matter among states that enact
16 it.

17 **Sec. 16.** This chapter modifies, limits, or supersedes the
18 Electronic Signatures in Global and National Commerce Act, 15
19 U.S.C. 7001 et seq., but does not modify, limit, or supersede Section
20 101(c) of that act, 15 U.S.C. 7001(c), or authorize electronic
21 delivery of any of the notices described in Section 103(b) of that
22 act, 15 U.S.C. 7003(b).

